PART II

PERFORMANCE WORK STATEMENT (PWS)

Cafeteria & Vending Services for the IRS-Enterprise Computing Center (ECC)

14.0 GENERAL: This is a non-personnel services requirement to provide quality, reasonably priced Cafeteria Services for the IRS-Enterprise Computing Center (ECC), Martinsburg, WV Campus, located at 250 Murall Drive Kearneysville, WV 25430. The Government shall not exercise any supervision or control over the contract service providers performance of services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn, is responsible to the Government.

14.1 Background: The services are currently being provided under contract 2032H8-22-C-00002. The contract Period of Performance (POP) will end on September 30, 2026.

There are approximately 1,000 employees assigned to the IRS-Enterprise Computing Center (ECG) Martinsburg Campus in Kearneysville, West Virginia working various shifts, the majority of which are between the hours of 6:00a.m. and 6:00 p.m., Monday through Friday. There is an average lunch break of thirty (30) minutes with two (2) 15-minute breaks, typically mid-morning and mid-afternoon during which time cafeteria services are most often utilized. Building occupancy during these hours may fluctuate due to Flexi-Place Alternative/ Telework Work Schedules, training classes, special events or emergency preparedness activities at or around the IRS campus.

Cafeteria Usage: The estimated usage is listed below. These estimates are provided for informational purposes only to assist the Contractor in establishing the operation. These estimates do not guarantee any future users or receipts.

Average Annual Cafeteria Sales: $357,000.00 (Based on average of 251operating days per year including paid holidays. This estimate excludes cost of any expenses. Such as wages, food cost, etc.)

Patronage (Estimated):	Breakfast:	90
	Lunch:	147
	Monthly Average:	5400

Cafeteria Areas:	The area and approximate seating capacity is as follows:
Kitchen Area:	Lower Level (room O-011, 1165 SQ.FT.)
Serving/Salad Bar Area:	Lower Level (room O-0011, 2429 SQ. FT.)
Dining Room:	Lower Level (room O-0011, 3665 SQ.FT.) Approximate Seating Capacity: 250

14.2 Scope:

14.2.1 Cafeteria Services: The contractor shall provide all personnel and equipment, (except for specified Government Furnished Equipment (GFE), supplies, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide a full complement of Cafeteria Services. These services shall include providing breakfast and lunch services for the IRS-Enterprise Computing Center (ECC), Martinsburg, WV Campus located at 250 Murall Drive Kearneysville, WV 25430 as defined in this Performance Work Statement. The contractor shall perform to the standards outlined in this PWS.

14.2.2 Cafeteria Services Requirements

14.2.2.1 General:

The Contractor shall furnish all personnel, supervision, food products, and all required items/supplies (unless otherwise specified) necessary to operate the cafeteria.

The Contractor shall offer a variety of quality food items, including healthy choices, in quantities to satisfy customer demands and maximize customer satisfaction.

The Contractor shall provide cafeteria service Monday through Friday, except designated Federal Government holidays. (*Reference 3.0 Recognized Federal Holidays*) Service on recognized Federal Holidays may be amended in the event the Government adds or deletes designated Federal Holidays.

The Contractor shall provide fast, friendly, courteous cafeteria service that shall result in a high level of customer satisfaction. A customer comment box is installed in the dining area for customer feedback and evaluation.

The Contractor shall establish, operate and manage the cafeteria in the Contractor's name.

14.2.2.2 Menu:

The Contractor shall provide menu selections that coincide with cafeteria areas, such as a Salad Bar, Deli, and Specialty Bar and shall at a minimum offer pizza, sandwiches (hot and cold) and hot vegetables as part of the regular menu. (See Attachment 4 for a Sample of Menu Items.)

The Contractor shall provide a weekly menu in final format and send to the COR or designated representative, by Wednesday of each week for the following week, for posting to the website. This menu shall include the prices and each special for the week (See Attachment 4 and 5 for a Sample of Menu Items).

The Contractor shall ensure that patrons are aware of daily menu selections as is customary and as agreed upon by the COR.

The Contractor shall provide a healthy Hot Lunch Entrée a minimum of four (4) days per week.

The Contractor shall provide a minimum of one (1) quarterly promotional event to increase patronage.

The Contractor shall serve a minimum number of menu selections as follows, but may be increased with prior approval of the COR:

Breakfast selections:	4
Lunch selections:	8

14.2.2.3 Patron Payment: The Contractor shall accept cash or credit/debit cards from patrons for payment of purchases. The Contractor shall be responsible for all expenses associated with the acceptance of patron credit/debit cards. Unless notified otherwise, the Government will provide the phone service.

14.2.2.4 Sundry Items: The Contractor may be permitted to sell sundry items in the cafeteria such as cards, flowers and miscellaneous items generally available within a cafeteria, with the prior approval of the COR.

14.2.2.5 Deliveries: Deliveries shall only be accepted by Contractor personnel between the hours of 7:00 a.m. to 2:00 p.m., Monday through Friday.

14.2.2.6 Cleaning:

The Contractor shall furnish all labor, supplies, materials, equipment, and supervision sufficient to maintain the cafeteria area. The Contractor shall consistently clean the cafeteria area on a regular basis/schedule and shall meet the highest standards of sanitation common to the cafeteria industry.

The Contractor shall ensure that the cafeteria, which includes the serving and dining areas, kitchen, walk-in refrigerator and freezer, food preparation areas and the surfaces therein, is clean, orderly, sanitary and free of debris and mold always.

The Contractor shall bus the cafeteria dining area regularly so that the area is always free of soiled dishes and tables and chairs are clean for incoming patrons.

The Contractor shall regularly remove trash and food debris from the kitchen, serving areas and floors. The Contractor is not responsible for dining room floor maintenance, restroom maintenance, high cleaning or removal of cafeteria dining room and restroom trash.

The Contractor shall use environmentally safe cleaning materials. Within fourteen (14) days prior to the start date of service, the Contractor shall submit to the COR the Safety Data Sheets (SDS) or the brand name or manufacturer of all cleaning materials and chemicals proposed for use in connection with the work inherent with this award. The Contractor will be advised of rejected materials and chemicals, that is, any materials and chemicals determined unsuitable or harmful and shall promptly substitute it/them with environmentally safe cleaning materials. The Contractor shall provide the COR with SDS documentation for new chemicals to be used. Not later than January 31 of each year, the Contractor shall forward an updated inventory of chemicals being used.

The Contractor shall comply with current OSHA regulations regarding the use, training and record keeping of chemicals used in the performance of this contract. The Contractor shall provide or make available for Government inspection, copies of necessary documentation to ensure compliance with OSHA requirement.

The Contractor shall use equipment in the performance of the cleaning services that are of the type and of sufficient capacity to assure high quality work.

The Contractor shall be responsible for purchasing the manufacturer's recommended cleaning supplies for all equipment including the combination oven.

The Contractor shall be responsible for maintaining containers and surrounding area for the storage of collectable recyclables clean, labeled and properly stored. The loading dock or other designated storage area specified for kitchen recycling waste shall remain free of any grease/oil spills.

14.2.2.7 Environmental, Health and Safety:

The Contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental issues. Removal of fryer waste oil and other kitchen waste is the responsibility of the Contractor.

The contractor shall submit to the COR a Hazard Communication Plan within 30 days of contract award.

The contractor shall submit to the COR a Blood Borne Pathogen Plan within 30 days of contract award.

The contractor shall submit to the COR an Environmental, Health and Safety Plan within 30 days of contract award.

In the event of a product recall by the U.S. Department of Agriculture (USDA) or the manufacturer, the Contractor shall immediately remove all recalled items from the cafeteria from use and notify the COR.

14.2.2.8 Emergency/Hazardous Conditions:

Upon award, the COR will provide the Contractor with a current Occupant Emergency Plan. The Contractor shall be responsible for compliance with the plan.

In emergency situations, such as inclement weather, the on-site Cafeteria Manager or alternate shall contact the COR for approval to open late or close early. The COR shall notify the CO in writing of any such event requiring opening or closing and then the CO will provide written confirmation of this approval to the Contractor upon return to work. If the COR is unavailable, it is the responsibility of the Contractor to call the IRS's Emergency Information Hotline telephone number at 1-866-743-5748 and enter Option 3. Callers will receive emergency information about the Martinsburg ECC Facility by pressing "1" for "Headquarters and Field Locations" and entering "WV" (98) for West Virginia, then pressing the# for Martinsburg to confirm the Center's operating time. It is expected that the cafeteria will remain open during all inclement weather conditions based on the Center's history.

The Contractor shall be responsible for unsanitary or hazardous conditions that are dangerous to anyone using the cafeteria. This shall include any employee, agent or representative of the Contractor, Federal employee, or other patrons of the cafeteria facility and shall be applicable to any portion of the facility that is under the jurisdiction of the Contractor. In the event a health hazard endangering a cafeteria facility patron is identified, upon notification by the COR, the CO may issue a written notice requiring the Contractor to close all cafeteria operations.

The Contractor shall notify the Security Command Center at (681) 260-4000 in the event of fire or any other emergency.

14.2.2.9 Reporting Requirements:

The Contractor shall provide a monthly profit and loss (P/L) statement to the Contracting Officer and the Contracting Officer's Representative (COR) for review within ten (10) days of the end of the previous month's accounting period. The Contracting Officer and COR shall, as required and necessary, examine all phases of the financial operation of the cafeteria and sundry stands, if applicable. It is required that the Contractor average the accumulation of daily patronage data results to provide this monthly report, with an annual summary, report to the COR. This patronage and check average information report need not be certified. Information relative to monthly patronage and sales (Head Count and Operational Sales) showing numbers for the breakfast and lunch serving periods should also be included in the monthly report.

The Contractor shall certify and submit end of fiscal year profit/loss statements to the Contracting Officer and the COR. The Contractor shall provide the cumulative monthly and annual summary statements the last business day of October.

The Contractor shall submit a final monthly Profit/Loss Statement upon the expiration or termination of the contract. Any payments due to the Government or anyone else must accompany the final monthly Profit/Loss Statement. The Contractor shall submit the final Profit/Loss Statement within thirty (30) days of contract expiration or termination.

14.2.3 Additional Services - Vending: The Contractor shall install, operate and maintain all vending machine equipment, food and beverage items, transportation, labor and supervision for vending machines to be placed in the locations designated in this PWS. The contractor shall provide all personnel, equipment, except for specified Government Furnished Equipment (GFE), supplies, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide Vending Services for the dispensing of food/snacks and non-alcoholic beverage (choices TBD) for designated break room areas at the IRS-Enterprise Computing Center (ECC), Martinsburg, WV Campus as defined in this Performance Work Statement.

14.2.4 Additional Services - Vending Requirements:

14.2.4.1 General:

The Contractor shall furnish all personnel, supervision, food products, and all other items (unless otherwise specified) necessary to operate Self-Serve Vending Services in designated areas.

The Contractor shall offer a variety of food items, including a selection of "healthy" items, in quantities to satisfy customer demands and maximize customer satisfaction.

The Contractor shall provide Self-Service Vending Service in designated employee break areas available 365 days per year, 24 hours per day, 7 days per week (365/24/7).

Designated Break Rooms: Level 1 (Room O-1046, 861 SQ.FT.) Approximate Seating Capacity: 16
Minimum: 1 ea. Pepsi Machines, 1 ea. Snack Machine

Level 1 (Room O-1072, 419 SQ.FT.) Approximate Seating Capacity: 12
Minimum:

Level 1 (Room W-1112, 558 SQ.FT.) Approximate Seating Capacity:22
Minimum: 1 Pepsi Machine

Level 2 (Room O-2029, 328 SQ.FT.) Approximate Seating Capacity: 8
Minimum: 1 Pepsi Machine, 1 Snack Machine

The Contractor may supply the same items available in the self-serve vending areas in the main Cafeteria providing those items are accounted for with the vending sales to ensure compliance with the Randolph-Sheppard Act and the pricing of the items is comparable.

The Contractor shall provide the COR a monthly P/L statement for the Vending operations separate from the general Cafeteria sales. The Vending Services P/L statement shall include separate accountability for Break Room vending machine sales and for vending items sold at the cafeteria facility within 10 days after the end of each month. It shall be the Contractor's responsibility to ensure the SLA receives the correct payment and accompanying statement within 10 days after the end of the month.

The Contractor shall provide separate certified end of fiscal year profit/loss statement to the COR by the last day of October each POP.

The Contractors vending sales shall comply with all provisions of the Randolph-Sheppard Act and verify the correct percentage of vending profits fifty percent (50%) are donated to the required organization: **West Virginia Division of Rehabilitation Services, Randolph-Sheppard Program, Joshua Gabehart, Manager. 10 McJunkin Road / Nitro, WV 25143.** Contractor to provide proof of payment compliance to COR within five (5) days of payment.

The Contractor shall submit a final monthly Profit/Loss Statement upon the expiration or termination of the contract. Any payments due to the Government or anyone else must accompany the final monthly Profit/Loss Statement. The Contractor shall submit the final Profit/Loss Statement within thirty (30) days of contract expiration or termination.

The Contractor will be responsible for all payments for state, county, and city license fees and sales or other merchandising taxes that may be imposed on the sale of merchandise through its vending machines or other means of sale.

The Contractor shall always keep the machines stocked with an adequate quantity of assorted snacks and beverages to ensure continuous service to patrons. Machines shall maintain a minimum of 80% inventory.

The Contractor shall stock the machines with a wide selection of brands at competitive prices. For example (but not limited to):

Coke, Diet Coke, Pepsi, Diet Pepsi, Mountain Dew, Diet Mountain Dew, Ginger Ale, Diet Ginger Ale, Sierra Mist, Dr. Pepper, Diet Dr. Pepper, A&W Root Beer, Sunkist Orange, Welch's Grape, Iced Tea, Lemonade, Deer Park Water, Aquafina Water,

Doritos, Potato Chips, Cheese Fries, Bugles, Salted Nuts, Lance Crackers, Granola Bars, Baby Ruth, Snickers, Milky Way, Reese Cups, Almond Joy, M&M's, Popcorn, Chewing Gum, Mints, etc.

All products for sale through the vending machines (including the initial stock of such product contained in the vending machines at the commencement of the Agreement) shall be, from the time of their being placed within the vending machines, the property of the Contractor until vended.

Vending machines are to be stocked only with locally popular or widely marketed brands of products (i.e., name brands) which have demonstrated demand through continued frequency of sales.

By stocking the vending machines with those items noted above, the Contractor certifies the products supplied will in all respects be suitable for human consumption and that the preparation, transportation, storage, and dispensing of all food and beverage products being vended through the machines will comply with applicable state and local codes and ordinances, including local health department regulations. Food items which are made of readily perishable ingredients and packages for vending machines will be prepared daily and conspicuously marked to show the expiration date. Food items which are flash frozen after packaging shall be marked in the same way.

The Contractor shall take reasonable measures to ensure that the methods the product supplier takes or uses in the product manufacturing or processing and handling and vending will be in conformity with all applicable laws and regulations relating to the non-adulteration of food and drink, sanitation, and preservation of public health.

In accordance with Federal Drug Administration Food Code, the Contractor shall maintain fresh merchandise (not out of date/expired) in the vending machines. Failure to adhere to this requirement may result in immediate Agreement termination.

14.2.5 Equipment Requirements, Maintenance and Service of Vending Machines:

14.2.5.1 General:

The Contractor/Vendor shall install "Energy Star," energy efficient, vending machines. These machines shall include Pepsi, Coca-Cola, Snack Machines and Merchandiser Machines, and shall accept the Presidential Dollar Coins in accordance with the Presidential Coin Act of 2005.

All electrically operated vending machines furnished shall be equipped to provide thermal overload protection, shall be equipped with all necessary safety devices which shall always be maintained in an operating condition, shall be listed by Underwriter's Laboratories and must be approved by the National Automatic Merchandising Association, the National Sanitation Foundation or other approved testing organization.

All vending machines furnished shall be securely mounted or secured to each other, the floor and/or the wall, to prevent the machines from being rocked back and forth or tipped over to prevent the possibility of damage to equipment and/or injury to people.

The Contractor/Vendor shall ensure, at its expense, the vending machines including meters and special attachments are maintained in proper mechanical working order. The Contractor/Vendor shall make all necessary repairs and furnish all replacement parts. The Contractor/Vendor shall also keep the vending machines, material handling equipment and properly identified service vehicles in a clean, attractive and sanitary condition in accordance with all applicable laws, rules, ordinances, regulations and to the satisfaction of the IRS.

The Government will notify the Contractor/Vendor of vending machine failure to function properly. The Contactor/Vendor shall ensure any necessary repairs are accomplished within 24 hours of notification that repairs are required. The Contractor/Vendor shall be responsible for the expense of repairs. The Contractor/Vendor is responsible for escorting repair personnel in compliance with IRS security requirements.

The Contractor/Vendor shall install and maintain a minimum of one (1) Dollar Bill Changer in a location mutually agreed upon following execution of Agreement.

Requests to increase or decrease in the quantity or placement of vending machines by the Contractor/Vendor must be submitted in writing to the Contracting Officer Representative (COR) with justification, who will forward the request with the Contracting Officer (CO) for approval or denial.

The Government reserves the right to determine at any time that any of the vending equipment is no longer required or that more may be necessary or upon expiration or termination of this Agreement the Contractor/Vendor is responsible for promptly removing, at its expense, any equipment determined to be no longer required or installing additional equipment as may be requested. The Contractor/Vendor has five (5) business days to arrange for and pick up equipment requested to be removed by the IRS. The IRS may remove and store such vending equipment not removed by the Contractor/Vendor within the agreed time frame and charge the Contractor/Vendor for any reasonable and necessary expenses incurred for such removal and storage. The IRS shall not be held liable for damages incurred to equipment during such removal, due to the Contractor/Vendor's non-responsiveness. Placement of equipment shall be determined by the IRS.

The Contractor/Vendor shall establish a Standard Operating Procedure (SOP) to provide for full reimbursement to patrons, at no cost to the Government, should a patron fail to receive merchandise when selected. This SOP shall be submitted to the COR 5 days after contract award or exercise of option then posted in breakrooms where vending machines are located.

14.2.6 Termination/Dispute Resolution:

The CO or COR will notify the Contractor/Vendor in writing of violations or concerns. Failure to provide resolution to concerns or problems shall be grounds for termination of the Agreement. In accordance with FAR Clause Part 52.212--4(s), "Order of Precedence" and FAR Clause Part 52.212-4(1), "Termination for the Government's Convenience", the following are examples of situations which may lead to termination of the Agreement are (but are not limited to):

Failure to maintain acceptable restocking schedule.
Failure to provide acceptable quality and/or type of products.
Stocking prohibited products or out-of-date products, etc.
Failure to adhere to institution security requirements.
Failure to maintain functional equipment.
Failure to provide P/L statements and proof of SLA payment within 10 days after the end of each month.
Fraud or deceptive accounting practices to lower the payments to the SLA (will result in immediate contract

termination and possible criminal prosecution).

14.2.7 Risk of Loss:

In addition to the FAR Clause at 52.212--40), "Risk of Loss", the Contractor/Vendor shall assume the full risk of and responsibility for any loss, destruction or damage occurring to the vending machines, machine components or containers, except such loss or damage as may be attributed to the IRS by reason of negligence of its employees while acting within the scope of their employment. The Contractor/Vendor shall not be relieved of liability for its negligence or for the negligence of its employees. The Contractor/Vendor shall assume the risk of any loss of profits resulting from mechanical defects whereby the vending machines disgorge excessive amounts of product. Any lost revenues will be borne by the Contractor/Vendor.

2.0 Period of Performance:

The period of performance is one (1) Base Year of 12 months and four (4) successive 12-month option periods.

Base Period - 10/01/2026 – 09/30/2027

Option Period I - 1 0 /01/2027 - 09/30/2028

Option Period II - 10/01/2028 - 09/30/2029

Option Period III - 10/01/2029 - 09/30/2030

Option Period IV - 10/01/2030 - 09/30/2031

3.0 General Information:

3.1 Quality Control: The contractor shall develop and maintain an effective Quality Control Program (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is how he assures himself that his work complies with the requirements of the contract. The QCP is to be delivered TBD. A copy of a comprehensive written QCP highlighting changes shall be submitted to the CO and COR within 5 working days when changes are made thereafter. After acceptance of the quality control plan the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system.

3.1.1 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with this PWS, the Contractors QCP and the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

3.1.2 Food Code. The Contractor shall adhere to the requirements of the latest version of the FDA Food Code, and Federal, State and local regulations regarding sanitation and food safety. Violations of current Food Code may result in immediate contract termination.

3.1.3 Inspections. The Contractor is also responsible for passing all Federal, State and Local food establishment inspections. The Contractor shall be responsible for and shall pay all fines, if any, associated with the failure to pass an inspection. Daily Inspections may be conducted by local IRS inspectors for compliance with all requirements and food expiration dates. All inspection reports will be acknowledged and signed by the onsite Manager and submitted to the appropriate Inspector and COR within one (1) business day of receipt. Noted deficiencies must be rectified immediately.

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	
Juneteenth	Thanksgiving Day
Independence Day	Christmas Day

3.1.5 Hours of Operation: The contractor is responsible for conducting cafeteria business during the operating hours of place of performance and shall allow ample time to comply with the required preparation, required serving hours and the subsequent cleaning of the facility. The minimum full-service serving hours, with no closures between breakfast and lunch, for cafeteria services are:

Breakfast:	06:30 am - 10:30 am
Lunch:	11:00 am – 2:00 pm (May extend hours with CO/COR approval)

Contractor may extend the operating hours past 2:00 pm with approval from the COR and CO. The contractor will not be reimbursed when the government facility is closed for the reasons such as designated Federal holidays, closures due to local or national emergencies, administrative closings, or similar Government closure directives.

The Contractor shall always maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that providing service for the stability and continuity of the workforce are essential.

The contractor shall submit a written request to the COR for approval to adjust/modify the serving hours on a short-term basis.

The Government may also request adjustment/modification of long-term serving hour changes. The COR will initiate such a request and submit it to the CO for approval.

The Contractor may be required to periodically provide evening meals, service on Saturdays and/or Sundays,

luncheon meetings, catering, and/or special functions, such as the annual COOP exercise. The Contracting Officer will provide fourteen (14) days written notice or request to the Contractor, as appropriate, prior to required additional services, unless it is a matter of emergency preparedness which will require immediate response.

Price increases for Cafeteria shall be submitted in writing with justification to the COR and approval by the COR and CO prior to implementation.

3.1.6 Security Requirements: The Contractor shall strictly adhere to all IRS security policies and procedures, including background investigations and other requirements pursuant to Homeland Security Presidential Directive 12(HSPD-12). The Security Policies and Procedures apply to all Contractor employees, temporary or permanent, delivery drivers, and subcontractors. Contractor personnel performing work under this contract must have a Public Trust Level security clearance with Staff-Like Access for the place of performance, which at minimum requires a National Agency Checks and Inquires (NACI) and IRS Tax Record Check and must maintain the level of security required for the life of the contract.

Once the contract is awarded the Contractor will be contacted by Contractor Security Management (CSM) and shall then provide the required information to CSM in accordance with the IRS HSPD-12 Guidelines necessary to complete the background investigation package through Personnel Security (PS) for each of their employees requiring access to the IRS location. The Contractor shall ensure that each block on the forms is completed accurately prior to submittal for employees before entrance for contract performance.

This process could take up to six months before a final staff-like approval is granted and the employee can obtain a photo badge for access. In accordance with the current onsite security requirements, the employee would need to be escorted by an already approved Contractor on the cafeteria staff until an interim staff-like access is granted by PS. If the COR receives an unsuitable report on any employee after these forms are processed or if the prospective employee is found to be unsuitable or unfit for their assigned duties, the Contractor will be advised immediately, in writing, that such employee cannot continue to work or be assigned to work under this contract. A normal low risk PS requirement for a new Contractor employee is a National Agency Check and Inquiries (NACI) background investigation. However, the Government may require the cafeteria manager, alternate cafeteria manager and the cashier to obtain a higher-level background investigation called a Minimum Background Investigation (MBI) to access IRS email and internet accounts.

The Government shall have, and exercise, full and complete control over granting, denying, withholding or terminating clearances for employees. The Government may, as it deems appropriate, authorize and grant temporary clearance to employees of the Contractor. However, the granting of a temporary clearance to any such employee shall not be considered as assurance that full clearance will follow as a result or condition thereof and the granting of either temporary or full clearance shall in no way prevent, preclude or bar the withdrawal or termination of any such clearance by the Government.

3.1.6.1 **Physical Security**: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

3.1.6.2 **Key Control:** The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. **NOTE:** All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer.

In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due the Contractor.

The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.

3.1.6.3 **Lock Combinations:** The Contractor shall establish and implement methods of ensuring that all lock combinations, if used, are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

3.1.6.4 **Identification Badges**: Identification Badges will be issued to by the Government to the contractor for each Contractor employee upon the receipt of an approved security report.

The Contractor shall ensure that all employees have a signed IRS Contractor photo identification badge before employees report for performance under the contract and shall be displayed during performance hours. The badge shall also be shown upon request.

The Contractor shall ensure the availability of employees to allow the IRS to produce photo identification badges on a schedule mutually agreeable with the COR.

The Contractor shall immediately report lost badges to the COR. Replacement badges may be the responsibility of the Contractor.

The Contractor shall return badges of employees dismissed or terminated to the COR.

The use of photo identification badges will be at the option of the Government.

3.1.7 Special Qualifications: The Cafeteria Manager, also identified as “key personnel,” shall possess a culinary arts degree, Serv-Safe certification and any required OSHA certifications. All cafeteria employees shall possess Serv-Safe certifications and any required OSHA certifications.

3.1.8 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

3.1.9 Key Personnel: The following personnel are considered key personnel by the government:

Cafeteria Manager: The on-site Cafeteria Manager and a designated alternate individual who each has the authority to supervise personnel and act for the Contractor on a day-to-day basis for all cafeteria and personnel related matters are identified as Key Personnel. The Cafeteria Manager shall possess a culinary arts degree and Serv-Safe certification. The Cafeteria Manager or alternate shall be available 24 hours per day, 365 days per year, by phone, paging or electronic messaging services provided by the Contractor for purposes of emergency preparedness.

General Employees: The Contractor shall provide an adequate number of personnel, there should be a minimum of five (4) employees not including the Cafeteria Manager working in the cafeteria daily, free of any communicable disease, possessing "people skills," food handling and sanitation skills, knowledge, training, licensing and certifications needed to satisfactorily perform all work required by this contract. Personnel shall be able to read, write, speak, and understand English and perform in accordance with the contract. All employees shall be Serv-Safe certified.

The contractor shall supply the COR with the contact information of key personnel within five (5) days of contract award or personnel change.

3.1.9.1 Removal of Personnel: The Contractor shall promptly remove or deny access to any personnel whose conduct is determined by the Contractor or Government to be inconsistent with the best interests of the Government or on matters of security or overt evidence of communicable disease. The Contractor shall continue to perform contract services following the removal or denial of access to any personnel.

3.1.9.2 Personnel Dress Requirements: Contractor personnel shall present a clean, well-groomed, uniform appearance always while performing on this contract and shall wear some form of professional identification (uniforms) customary to the industry. Uniforms shall be washed daily, or a uniform provider/laundry service utilized.

3.1.9.3 Personnel Training: Contractor employees shall be trained annually in the areas of Food Handling, Sanitation, Nutrition, Hazardous Material (Material Safety Data Sheet- MSDS), Personal Protective Equipment, Fire Prevention and Protection, Civil Defense Drills, Exposure Control and IRS and Site-Specific training required for contractors. All training shall be documented by the Contractor and on file and available to be viewed by the COR prior to any Contractor employees beginning to perform services under this contract or at any time during performance of this contract. Compliance with training requirements will be checked annually.

3.1.9.4 Contractor Assistance: The Contractor shall cooperate with Governmental authorities in any administrative, civil, or criminal proceedings, including providing documentation related to employees or performance under this contract.

3.1.9.5 Personnel Wages: The Contractor is responsible for paying wages that, at minimum, are greater than or equal to (≥) those required by the Department of Labor Wage Determination Schedule.

3.1.9.6 Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in any situation where their contractor status is not obvious to third parties, and the assumption of government employee status is automatic are required to identify themselves as Contractors to avoid creating an impression in the public eye of a Government official. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed. Contractor personnel will be required to obtain and wear Security/ID badges in the performance of this service. Contractor personnel shall wear some form of professional identification, customary to the industry.

3.2 Phase In /Phase Out Period-Contract Transition: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board during the *five* (5) day phase in/ phase out periods. During the phase in period, the Contractor shall become familiar with performance requirements to commence full performance of services on the contract start date.

Upon notification of a change in the contractors, the Contractor shall:

- Provide the Government and/or new contractor access to the cafeteria area.
- Provide the new contractor access to the incumbent contractor's employees.
- Allow for the public posting of a suitable recruitment notice within the facility.
- Coordinate the removal of Contractor-owned equipment with the COR, if necessary.
- Coordinate a joint inventory of all Government furnished property with the COR.

4.0 <u>DEFINITIONS AND ACRONYMS</u>:

<u>DEFINITIONS</u>:

CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

CONTRACTING OFFICER. A person with authority to enter, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor if that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the Performance Work Statement.

DELIVERABLE. Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

PHYSICAL SECURITY. Actions that prevent the loss or damage of Government property.

QUALITY ASSURANCE. The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

QUALITY ASSURANCE SURVEILANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of a product or service shall meet contract requirements.

SUBCONTRACTOR. One that enters a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

WORKDAY. The number of hours per day the Contractor provides services in accordance with the contract.

WORK WEEK. Monday through Friday, unless specified otherwise.

4.1. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
EHS	Environmental, Health and Safety (Plan)
FAR	Federal Acquisition Regulation
FDA	Food and Drug Administration
HCP	Hazard Communication Plan
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
MSDS	Material safety Data Sheet
NACI	National Agency Checks and Inquiries
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OSHA	Occupational Health and Safety Administration
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
SDS	Safety Data Sheet
TE	Technical Exhibit

5.0 GOVERNMENT FURNISHED ITEMS AND SERVICES:

General: The Government agrees to grant to the Contractor, subject to the contract requirements and conditions herein, the right to establish, manage and operate the cafeteria in the Main Building as described herein and in connection therewith to prepare and sell food, nonalcoholic beverages and such other products as the Government may authorize.

5.1 Services: The Government will provide the maintenance and repair of the building structure and Government Furnished Equipment (GFE) in areas assigned for the Contractor's use, including painting and redecorating, the maintenance of water, sewer, and electrical lines, ventilation, electrical lighting fixtures (including re-lamping), floors and floor coverings, and walls and ceilings. The Contractor shall bear the expenses of repairs necessary because of the negligence on the part of the Contractor or Contractor's employees. The Government will make such improvements and alterations as the Government may deem necessary or desirable to prepare or recondition assigned space for the Government's intended purpose, including improvements and alterations necessary to conform to applicable sanitary requirements or energy efficient requirements.

5.2 Facilities: The Government will provide space for operations under the contract including the necessary workspace for the contractor staff to provide the support outlined in the PWS to include desk space, telephones, computers, and other items necessary to maintain an office environment as it may deem necessary or desirable. The Government will provide adequate ingress and egress, including a reasonable use of existing elevators, corridors, passageways, driveways, and loading platforms. The Government will, as it deems advisable, provide space, HVAC, and utilities. Security requirements during construction periods may cause delays in ingress and egress, and alternative routes may be required for deliveries and trash removal.

5.3 Utilities: The Government will provide HVAC, Electric, Water, Sanitary Sewer, Trash Removal and Telephone/Telecom Service for the Contractors use in performing the contract requirements. The Contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning of utensils and equipment.

5.4 Equipment: The Government at its own expense will provide, install and permit the Contractor to use the equipment list in Part 7, Attachment 6 (Government Furnished Equipment) and any additions thereto. The Government will replace equipment, component parts of, and make repairs to such equipment that it has provided, as it deems necessary. The Government will provide preventive maintenance services in accordance with the manufacturer's suggested maintenance guide or the Government's maintenance guide for each individual piece of Government-owned equipment. The Contractor shall not be responsible for costs associated with Government furnished items, unless determined to result from the fault or negligence of the Contractor.

GFE repair/notification procedures. In the event of Government Furnished Equipment breakdown or failure the cafeteria contractor is to put a repair ticket into the IRS OS Get Services / KISAM system and notify the Cafeteria Services Contract COR and the Operations and Maintenance (O&M) Contract COR of the malfunction to arrange for the repair. In the event of an emergency the cafeteria contractor is authorized to contact the O&M Contractor direct to expedite the repair to prevent personnel injury or further damage of GFE or other property, then follow up with COR notification.

Use of GFE after hours: In the event Cafeteria Equipment (Government of Contractor furnished) is to be used unmonitored after hours for food prep the Contractor is to notify the COR and the Security Command Center for inclusion in that evenings rounds to monitor for malfunction.

5.5 Materials: The Government will provide copies of IRS-ECC specific Standard Operating Procedures and Policies, and other such documents required to perform the requirements of this contract not available to the public or accessible to the contractor by other means.

6.0 <u>CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES</u>:

6.1 General: The Contractor shall furnish all supplies, equipment, utensils, facilities and services required to perform work under this contract that are not listed under Section 5.0 of this PWS. All required equipment, utensils, and property not provided by the Government are Contractor furnished items and are at no cost to the Government. The Contractor is responsible for all maintenance, repairs, replacement (loss, wear, breakage, or obsolescence), parts, and training for Contractor-furnished equipment and property. The Government will not be responsible in any way for loss or damage occasioned by fire, theft, "acts of God," accident, nor otherwise to the Contractor's materials, supplies, or equipment stored on Government property. The Contractor shall be solely responsible for all costs associated with Contractor- furnished/owned items.

6.2 Materials:
The Contractor shall submit a complete physical inventory and item prices of all <u>Contractor Furnished Equipment</u> supplied for performance of this contract. The inventory listing will be verified and signed by the COR and a signed copy provided to the Contracting Officer and the Contractor.

The Contractor shall submit a complete physical inventory and confirmation/acceptance of all <u>Government Furnished Equipment (GFE)</u> supplied for performance of this contract. The inventory listing will be verified and signed by the COR and a signed copy provided to the Contracting Officer and the Contractor.

The Contractor is required to purchase their own toner for the Government-furnished printer.

The Contractor is required to purchase all consumables required to meet the contract requirements.

The Contractor is required to use the standard plugs to fit NEMA 5-20R, 20-amp, 120-volt receptacles unless specified otherwise and is subject to inspections by the Government for compliance.

The contractor is required to purchase and/or supply all Point of Sale (POS) equipment.

It shall be the responsibility of the Contractor should they decide to purchase higher speed or additional lines for the POS equipment or Credit/Debit Card machines then the Government Furnished telecom lines capability. Involvement from IRS's local telecommunication/network group would be required prior to installation.

Equipment: The Contractor shall supply all equipment, material, services not specified in Section 5.0, Government Furnished Property, Equipment and Services and future equipment, material, services not approved for Government purchase but approved for contractor use.

Overnight Cooking: In the event of food preparation for the next day, the contractor shall cook meat items in the oven at a temperature no higher than 200 degrees. The contractor shall arrive one hour earlier before opening at 5:30am to extract the meat item. Before the event, the contractor shall notify all pertinent parties including (FMSS, Security, Custodial and O&M) by email to be prepared in case of an emergency. Contractor will be responsible for all damages that may occur. SOP is in place and signed by the Contractor PM.